

26CHCV01208 26CHCV01208

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-09

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DEFENDANTS 2017-2 IH BORROWER LP AND INVITATION HOMES
OPERATING PARTNERSHIP LP'S DEMURRER TO PLAINTIFF'S AMENDED COMPLAINT

Motion filed on June 3, 2026.

MOVING PARTY: Defendants 2017-2 IH Borrower LP and
Invitation Homes Operating Partnership LP

RESPONDING PARTY: Plaintiff Julian Lawrence Colberg

NOTICE: OK.

RELIEF REQUESTED: Defendants seek an order sustaining their
demurrer to Plaintiff's Amended Complaint without leave to amend.

RULING: Continued to October 26, 2026.

BACKGROUND/DISCUSSION

On March 26, 2026, Plaintiff Julian Lawrence Colberg
(Plaintiff) filed the Complaint against Defendants 2017-2 IH Borrower LP and
Invitation Homes Operating Partnership LP (collectively, Defendants), alleging

negligence arising from allegedly unsafe conditions at rental properties leased from Defendants. On May 1, 2026, Plaintiff filed the operative First Amended Complaint, again alleging negligence. On June 3, 2026, Defendants filed the instant Demurrer and Request for Judicial Notice. Plaintiff filed oppositions on August 31, 2026, and September 1, 2026.

A court may take judicial notice of records of any court of this state. (Evid. Code, § 452, subd. (d).) When a matter subject to judicial notice under section 452 is of substantial consequence to the determination of the action, and the court proposes to take judicial notice of that matter, the court must afford each party a reasonable opportunity to present information concerning the propriety of taking judicial notice and the tenor of the matter to be noticed. (Evid. Code, § 455, subd. (a).)

Here, Defendants request judicial notice of records from Plaintiff's prior action and appeal. The Second Appellate District docket reflects that the appeal in Colberg v. Invitation Homes, Case No. B354126, was dismissed on July 16, 2026. That dismissal was not included in Defendants' Request for Judicial Notice. The Court proposes to take judicial notice of the July 16, 2026 dismissal and continues the hearing to permit the parties to address the dismissal and its effect, if any, on the Demurrer.

CONCLUSION

The hearing on the Demurrer is continued to October 26, 2026, at 8:30 a.m. in Department F-46.

The parties may each file one supplemental brief, not exceeding five pages, by October 5, 2026. No further briefing is permitted absent leave of Court.